

required documents on all parties. Should counsel choose to file again, additional efforts will need to be made to confirm the address used for service on Defendant. The proposed Order cannot be modified. Defendant's counsel is to prepare the Order.

IN RE: DIGIUSEPPE

CASE NUMBER: 26CV-0209838

Tentative Ruling on Petition for Change of Name: Petitioner seeks to change the last name of her minor daughter. The Certificate of Publication has been filed. Pursuant to Evid. Code § 452(d), the Court takes judicial notice of the Judgment filed on March 17, 2025 in Case No. 206611. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

ITRIA VENTURES LLC VS. KAMFOLT

CASE NUMBER: 23CV-0203471

Tentative Ruling on Order to Show Cause Re: Dismissal: On March 2, 2026, the Court issued an Order to Show Cause Re: Dismissal to Cross-Complainant Michael Jay Kamfolt, in pro per, for failure to timely serve the Cross-Complaint and failure to timely prosecute the Cross-Complaint. The Cross-Complaint was filed on July 2, 2024 and names all new parties. "A cross-complaint against a party who has appeared in the action must be accompanied by proof of service of the cross-complaint at the time it is filed. If the cross-complaint adds new parties, the cross-complaint must be served on all parties and proofs of service on the new parties must be filed within 30 days of the filing of the cross-complaint." CRC 3.110(c). There is still no Proof of Service of Summons on file for any of the Cross-Defendants. Cross-Complainant did not file a written response to the Order to Show Cause. Monetary sanctions have already been imposed for the delay.

With no sufficient excuse for the delay and because previous sanctions have been ineffective, the Cross-Complaint filed on July 2, 2024 is dismissed without prejudice pursuant to Gov. Code § 68608(b).

OFFICER VS. MID VALLEY PROVIDERS, INC., A CALIFORNIA CORPORATION

CASE NUMBER: 22CV-0201036

Tentative Ruling on Motion for Class Certification: Plaintiff Danielle Officer seeks class certification. Defendant Mid Valley Providers, Inc. opposes the motion.

Evidentiary Objections. Plaintiff objects to eight portions of the Declaration of Debbie Larmour. The Court overrules as to each of the eight objections. Plaintiff objects to 29 portions of the Declaration of Robert Crandall. The Court overrules as to each of the objections with the exception of Objections 12 and 13 which are sustained under Evid. Code § 702 and speculation as to 13 only.

Judicial Notice. Plaintiff requests the Court take judicial notice of six Opinion Letters issued by the DLSE. Defendant did not object. The request granted pursuant to Evid. Code §§ 452 and 453.

Merits. A class action permits persons to sue on behalf of others where it is shown to be necessary and superior to separate lawsuits by or against members of the group individually. CCP § 382 provides authority for class actions: "[W]hen the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court, one or more may sue or defend for the benefit of all." To maintain a class action, certain prerequisite conditions must exist, and the action must be based on one or more permissible grounds.

Under California law, the two basic requirements that must exist to sustain a class action are: the existence of an ascertainable class, and a well-defined community of interest in the questions of law and fact involved. With respect to the community of interest requirement, three separate factors are considered: 1) predominant common

questions of law or fact; 2) class representative whose claims or defenses are typical of the class; and 3) class representatives who can adequately represent the class. *Sav-On Drug Stores, Inc. v. Superior Ct.* (2004) 34 Cal. 4th 319, 326. “A court must examine the allegations of the complaint and supporting declarations and consider whether the legal and factual issues they present are such that their resolution in a single class proceeding would be both desirable and feasible.” *Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal. 4th 1004, 1021-1022 “[T]rial courts are not obligated as a matter of law to resolve threshold disputes over the elements of a plaintiff’s claims, unless a particular determination is necessarily dispositive of the certification question.” *Id.* at 1017. “The certification question is ‘essentially a procedural one that does not ask whether an action is legally or factually meritorious.’ ” *Sav-On Drug Stores, Inc. v. Superior Court, supra*, 34 Cal.4th at p. 326, quoting *Linder v. Thrifty Oil Co.* (2000) 23 Cal. 4th 429, 439-440.

Plaintiff seeks to certify the following:

Class: All current and former hourly-paid employees employed by Mid Valley Providers, Inc. (“Defendant” or MVP”) within the State of California at any time during the period from November 14, 2018 up to the notice of class mailed to class members, to be determined by the Court at a later date, by which class members may opt-out after being provided notice of certification (the “Class Period”).

Meal Period Subclass: All members of the Class who worked at least one shift of more than five hours at any time during the Class Period.

Rest Period Subclass: All members of the Class who worked at least one shift of three and one-half hours or more at any time during the Class Period.

Waiting Time Subclass: All members of the Class who were terminated or resigned during the Class Period.

Ascertainable Class.

Ascertainability is a due process requirement that ensures it is possible to decide who will be bound by the judgment (res judicata effect). The determination is made by examining the class definition and the size of the class. One may also examine the means available to identify class members, but this is not the exclusive test. *Noel v. Thrifty Payless, Inc.* (2019) 7 Cal. 5th 955. The proposed classes are ascertainable from the records already provided by Defendant. From the records, Plaintiff has identified 486 putative class members. Listed in the data are 212 employees who worked in a residential care setting and 282 who worked in personal homes. Plaintiff noted that there may be some overlap as it appears that some putative class members may be listed twice. This is something that can easily be cleared up when unredacted class data is available. Plaintiff has carried her burden with respect to ascertainability as the putative class has already been ascertained. Based on the data provided, subclasses will also be easily ascertainable from timekeeping records.

Community of Interest.

Predominant Common Questions of Law or Fact. To have predominant common questions between the class members, each member must not be required to individually litigate numerous and substantial questions to determine his or her right to recover following the class judgment, and the issues which may be jointly tried, when compared with those requiring separate adjudication, must be sufficiently numerous and substantial to make the class action advantageous to the judicial process and to the litigants. *Washington Mut. Bank, FA v. Sup.Ct. (Briseno)* (2001) 24 Cal. 4th 906, 913-914.

Here, Plaintiff has provided expert analysis of timekeeping records and been able to determine that a very high percentage of the shifts were paid at exactly 8, 10, or 12 hours. According to the putative class members who

provided declarations, they were required to stay after their shift until the next person was ready to begin supervision. Defendant did not provide declarations from any putative class members stating that this was untrue. The employees were subject to the same meal agreement and policy manual. There are numerous common questions such as which wage order applied and whether exemptions applied. These questions would not require testimony from every putative class member and can be determined on class or subclass wide basis. The Court finds that the class and three subclasses are based on facts and legal theories that present predominate common questions of law and fact. Therefore, the class and subclasses identified by Plaintiff are appropriate for treatment as a class action.

Adequacy of Representation. In order to establish the “community of interest” requirement for class certification, it must also be shown that the class representatives, through qualified counsel, are capable of “vigorously and tenaciously” protecting the interests of the class members. *Simons v. Horowitz* (1984) 151 Cal. App. 3d 834, 846. Plaintiff has provided evidence that David D. Bibiyan and Laurel Holmes have sufficient experience in wage and hour class action matters to serve as class counsel. The Court notes that Molly DeSario and Bryce Bommer are listed in the propose Order as class counsel, however, no evidence was provided as to these individuals and the Court will not appoint them as class counsel with no evidence of their experience with wage and hour class actions. If Plaintiff deems it necessary, Plaintiff can seek to add Molly DeSario and Bryce Bommer at a later date via motion or stipulation by the parties.

To assure adequate representation, the class representative’s claim must not be inconsistent with the claims of other members of the class. *J.P. Morgan & Co., Inc. v. Sup.Ct. (Heliotrope General, Inc.)* (2003) 113 Cal. App. 4th 195, 212 (finding that putative class action plaintiffs who were themselves potential defendants had insurmountable conflict). No such conflicts have been presented here. Plaintiff Officer did not hold a supervisory role. While Defendant has argued that Plaintiff Officer only worked for Defendant for a short period of time, that does not take away from her being subject to the same policy and practice as the rest of the putative class.

Typicality. The test of typicality is whether other members have the same or similar injury, whether the action is based on conduct which is not unique to the named plaintiffs, and whether other class members have been injured by the same course of conduct.” *Martinez v. Joe's Crab Shack Holdings* (2014) 231 Cal. App. 4th 362, 375. A class representative’s claim is typical if it arises from the same event or course of conduct and has the same legal theory as the claims of the other class members. Typical does not mean identical and it is sufficient that the representative is similarly situated to the class members. *Classen v. Weller* (1983) 145 Cal. App. 3d 27, 45. The alleged violations claimed by Plaintiff Officer are typical of the rest of the class. There is no evidence that her experience was different than the rest of the putative class members

Superiority. The proper legal criterion for deciding whether to certify a class is whether plaintiff establish by a preponderance of the evidence that the class action proceeding is superior to alternate means for a fair and efficient adjudication of the litigation. *Sav-on Drug Stores, Inc. v. Superior Ct.* (2004) 34 Cal. 4th 319, 326. “The ultimate question in every case of this type is whether ... the issues which may be jointly tried, when compared with those requiring separate adjudication, are so numerous or substantial that the maintenance of a class action would be advantageous to the judicial process and to the litigants.” *Lockheed Martin Corp. v. Sup.Ct.* (2003) 29 Cal. 4th 1096, 1104-1105. Plaintiff has presented sufficient evidence that class treatment is superior to individual litigation. The putative class is well over 400 individuals and class action treatment appears to be advantageous to both the judicial process and litigants.

Accordingly, the Motion for Class Certification is **GRANTED**. The Court certifies the class and subclasses identified in Plaintiff’s proposed Order. The Court appoints David D. Bibiyan and Laurel Holmes of Bibiyan Law Group, P.C. as class counsel. Defendant is ordered to provide Plaintiff a list of all potential class members including the personal identifying information identified in the proposed Order within 30 days of today’s hearing. The parties are ordered to meet and confer regarding the form and substance of the class notice per CRC 3.766.

The matter will be on calendar on **Monday, June 8, 2026 at 9:00 a.m. in Department 63** for status of class notice. The parties are ordered to submit to the Court no later than June 1, 2026, a joint statement (or separate status statements if the parties cannot agree) that outlines a proposed class notice.

PHILLIPS, ET AL. VS. PRIME HEALTHCARE SERVICES, INC., ET AL.

CASE NUMBER: 25CV-0208680

Tentative Ruling on Demurrer: Defendant County of Shasta demurs to the First Amended Complaint filed by Plaintiffs Fredrick James Phillips and Heather Lynn Phillips. The matter was on for hearing on March 23, 2026 and the Court noted there was no Proof of Service on file for the Opposition filed by Plaintiffs and that Defendant had not filed a Reply. County Counsel informed the Court that the County had not received the Opposition. The Court continued the hearing to today. On March 23, 2026, Plaintiffs filed a Proof of Service indicating that on February 24, 2026 the Opposition was served on “County of Shasta, Clerk of the Board C/O County Counsel” at “1450 Court Street, Suite 308B Redding, CA 96001.” This is the address for the Clerk of the Board. County Counsel is Suite 332. In all cases where a party has an attorney in the action or proceeding, the service of papers must be upon the attorney instead of the party. CCP § 1015. Therefore, service on the Clerk of the Board instead of County Counsel was invalid and it appears that Defendant County of Shasta has still not been properly served with Plaintiffs’ Opposition.

The Court has also received a “notice of lodging proposed order re: leave to file second amended complaint” from Plaintiff. Absent a stipulation or noticed motion, the Court cannot unilaterally grant the relief requested by Plaintiff.

The matter is continued to **Monday, May 11, 2026 at 8:30 a.m. in Department 63** for hearing on the Demurrer. Plaintiffs are **ORDERED** to properly serve the Opposition. The Court notes that a Substitution of Attorney was filed on April 9, 2026 and the Defendant County of Shasta is now represented by Best Best & Krieger, LLP. The address listed is 300 South Grand Avenue, 25th Floor, Los Angeles, CA 90071. Plaintiffs are reminded of the timelines set forth in CCP § 1005(b). If the Opposition has not been properly served with a valid Proof of Service on file, the Court intends to strike the Opposition at the next hearing for lack of valid notice to Defendant County of Shasta. **No appearance is necessary on today’s calendar.**

ROBERT "BEAR" MASTERSON, INDIVIDUALLY, AND DERIVATIVELY ON BEHALF OF SLO GROUP LLC, ET AL. VS. SARAF, ET AL.

CASE NUMBER: 26CV-0210047

Tentative Ruling on Petition to Compel Arbitration and Stay Proceedings: Defendants Nishant Reddy and Simmon Saraf petition for an order compelling arbitration of Plaintiff, Robert “Bear” Masterson’s, claims and staying the proceedings pending completion of arbitration. Plaintiff opposes the motion. The Court notes that service of the petition and supporting documents was purportedly served by “Court E-Service.” No such service method exists with this Court. As the Plaintiff has filed an opposition, it appears this method of service may have been marked in error.

Merits: The Federal Arbitration Act (“FAA”) like California law, codifies the strong public policy in favor of enforcing arbitration agreements. 9 U.S.C. § 1 et seq. The FAA applies to any written arbitration agreement in a contract evidencing a transaction involving interstate commerce. *Allied-Bruce Terminix Companies, Inc. v. Dobson* (1995) 513 U.S. 25, 277. The court’s role under the FAA is limited to determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue. *See* 9 U.S.C. § 4; *Simula, Inc. v. Autoliv, Inc.*, 175 F.3d 716, 719–20 (9th Cir.1999); *see also Republic of Nicaragua v. Standard Fruit Co.*, 937 F.2d 469, 477–78 (9th Cir.1991). If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms. *Chiron Corp. v. Ortho Diagnostic Sys., Inc.* (2000) 207 F.3d 1126, 1130. Plaintiff has provided copies of the Operating Agreements